

6. 9:00 AM CASE NUMBER: C25-01070
CASE NAME: FUAD ALQADHI VS. JUAN GAYTAN ALMANZA
PLAINTIFF'S AMENDMENT TO COMPLAINT
FILED BY: GAYTAN ALMANZA, JUAN CARLOS

TENTATIVE RULING:

Defendant Juan Carlos Gaytan Almanza's ("Almanza") May 7, 2026 "Demurrer to Plaintiff's Amendment to Complaint" is OVERRULED.

Background

Plaintiff Fuad Alqadhi alleges that he was injured in a motor vehicle collision on April 18, 2023. He filed his complaint on April 16, 2025, alleging causes of action for motor vehicle negligence and general negligence against Almanza, the registered owner and insurance policyholder of the other vehicle, and Does 1 through 50. On December 23, 2025, Plaintiff filed an amendment to the complaint substituting Jacquelin Gaytan, the driver of Almanza's vehicle, for Doe 1. The Court signed the amendment form on February 20, 2026.

Almanza filed this demurrer on May 7, 2026. He argues that Plaintiff knew Gaytan's identity when the complaint was filed, so the Doe amendment does not relate back under Code of Civil Procedure section 474 and the claims against Gaytan are barred by the two-year statute of limitations in Code of Civil Procedure section 335.1. Plaintiff filed his opposition on September 15, 2026, supported by the declarations of Plaintiff and his counsel, Nikolaus W. Reed.

Analysis - Procedure

The notice of demurrer names Almanza as the demurring party, but the demurrer is directed entirely at the Doe amendment substituting Gaytan, and the memorandum asks that the action against Gaytan be dismissed. The same counsel represented both defendants when the demurrer was filed, and Plaintiff does not object to the form of the demurrer or to Almanza's standing to bring it. The Court therefore treats the demurrer as brought on behalf of Gaytan.

Code of Civil Procedure section 474 does not specify how a defendant may challenge a Doe amendment. When a defendant contends the plaintiff knew the defendant's name and the facts supporting the cause of action when the complaint was filed, whether the plaintiff was actually ignorant is ordinarily a question of fact. (*McOwen v. Grossman* (2007) 153 Cal.App.4th 937, 944-948.) Courts have permitted such challenges through evidence-based pretrial motions, including motions to quash service of summons. (*A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1063, 1067.) A demurrer is not a suitable vehicle, because the demurring party's knowledge showing does not appear on the face of the pleading.

Nothing on the face of the complaint or the Doe amendment shows a time bar. For this reason alone, the Court would overrule the Demurrer.

Merits

Even if not procedurally defective, the Court would overrule the Demurrer.

"The general rule is that an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint is filed." (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176.) "A recognized exception to the general rule is the substitution under [Code of Civil Procedure section] 474 of a new defendant for a fictitious Doe defendant named in the original complaint as to whom a cause of action was stated in the original complaint. If the requirements of section 474 are satisfied, the amended complaint substituting a new defendant for a fictitious Doe defendant filed after the statute of limitations has expired is deemed filed as of the date the original complaint was filed." (*Id.*)

Section 474 provides, in pertinent part, as follows: "When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint. . . and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly; . . ."

Section 474 must be liberally construed to enable a plaintiff to avoid the bar on the statute of limitations where he is ignorant of the identity of the defendant. Ignorance of the facts is the critical issue, and whether it be due to misinformation or negligence is not relevant. Under section 474, therefore, a plaintiff has no duty to exercise reasonable diligence prior to filing the complaint to discover the defendant's identity. (*Balon v. Drost* (1993) 20 Cal.App.4th 483, 487-488.) "[A] plaintiff is entitled to the benefits of section 474 unless substantial evidence shows she was not ignorant of the facts she needed to know." (*General Motors Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 595 [General Motors].)

Almanza contends the claims against Gaytan are barred by the two-year statute of limitations under Code of Civil Procedure section 335.1 because the Doe amendment does not satisfy section 474. Almanza argues Plaintiff knew Gaytan was the driver of the other vehicle from the time of the accident because Plaintiff spoke with her at the scene and the two exchanged "contact and insurance information at the scene...." (MPA, p. 2:23-25.) Almanza also argues Plaintiff's counsel knew Gaytan's identity before the complaint was filed because Plaintiff's counsel had her complete a Declaration of Assets and Insurance, which she signed on September 13, 2024. Almanza claims that as a result, Plaintiff was not ignorant of Gaytan's name when he filed the complaint, the Doe amendment does not relate back to the original filing date, and the claims against Gaytan are time-barred.

Plaintiff responds that he did not know Gaytan's name until December 15, 2025, when Almanza's responses to form interrogatories identified her as the driver, and that he filed the Doe amendment eight days later. (Reed Decl., ¶¶ 7-8, Exhs. 2-3.) Plaintiff acknowledges that he spoke with the other driver at the scene and knew she was a woman, but states that she did not identify herself or provide any names. The only information she provided was insurance information for the vehicle, which listed only Almanza, whom Plaintiff believes is her husband. Plaintiff further states that at no time before or after the accident did he receive any information as to the identity of the driver. (Alqadhi Decl., ¶¶ 4-6.) Plaintiff contends this is why the original complaint named Almanza. Plaintiff points out that later correspondence from the insurer and the DMV registration for the vehicle also identified only Almanza. (Reed Decl., ¶¶ 9-10, Exhs. 4-5.) As to the Declaration of Assets and Insurance, Plaintiff's counsel states that the form was a blank form attached to Plaintiff's policy limits demand sent on August 15, 2024. Counsel states that he never received the completed form and that the demurrer was the first time he saw it with Gaytan's name on it. (Reed Decl., ¶¶ 4-5.) Plaintiff argues that the

completed form was to be returned only if the insurer tendered the policy limits, and because the insurer never accepted the demand, the form never came back.

The evidence does not show that Plaintiff knew Gaytan's name when he filed the complaint. Plaintiff's deposition testimony establishes that he spoke with the other driver at the scene and knew she was a woman. It does not establish that he learned her name. Plaintiff states without contradiction that the driver did not identify herself and that the only information she provided was insurance information listing Almanza. (Alqadhi Decl., ¶¶ 4-5.) The insurer's correspondence and the DMV registration likewise identified only Almanza. (Reed Decl., ¶¶ 9-10, Exhs. 4-5.)

The Declaration of Assets and Insurance does not change this conclusion. It shows that Gaytan identified herself as the driver on September 13, 2024. It does not show that Plaintiff or his counsel ever received it. Almanza offers no evidence that the completed form was returned to Plaintiff's counsel, and counsel states that it was not and that he first saw it as an exhibit to the demurrer. (Reed Decl., ¶¶ 4-5.) Once Plaintiff learned Gaytan's name from Almanza's interrogatory responses, he substituted her as Doe 1 within eight days.

Almanza has not shown by substantial evidence that Plaintiff knew Gaytan's name when he filed the complaint. The Doe amendment therefore relates back to April 16, 2025, and the claims against Gaytan are not barred by the statute of limitations.

Disposition

Almanza's purported demurrer is **OVERRULED**. Plaintiff shall prepare the order, serve the signed order, and file a notice of entry of order. Jacquelin Gaytan shall file a responsive pleading within ten (10) days after service of notice of entry of order.

7. 9:00 AM CASE NUMBER: C25-01564
CASE NAME: JULIE BRUCE VS. WILLIAM ANDERSON
SET ASIDE JUDGMENT AND FOR LEAVE TO DEFEND ACTION
FILED BY: ANDERSON, WILLIAM
TENTATIVE RULING:

Defendant William Anderson's Motion to Set Aside Default and Default Judgment is **GRANTED**.

Background

Plaintiff Julie Bruce and defendant William Anderson are former romantic partners who co-owned real property at 1170 Mills Place in Oakley. The property had belonged to the trust of Bruce's late mother. In November 2020, the trust sold the property to Bruce and Anderson for \$430,000, with title taken in both names. The price was covered by a loan and a credit from the trust. The closing statements label that credit a gift of equity. The credit was not cash. It represented equity the trust applied to the price instead of taking in payment. Bruce says she contributed \$165,000 of her inheritance to the purchase.

After the relationship ended, the parties agreed to sell the property. Thereafter, on May 23, 2025,